

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #6	CCRB Case #: 202003033	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 04/30/2020 7:20 PM	Location of Incident: Randall Avenue and Zerega Avenue	Precinct: 43	18 Mo. SOL 10/30/2021	EO SOL 5/4/2022	
Date/Time CV Reported Sun, 05/03/2020 5:52 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/03/2020 5:52 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Juwann Jones	08298	963584	043 PCT
2. POM Christopher Layton	24002	963110	043 PCT
3. SGT Robert Vassallo	04886	954397	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Juwann Jones	Abuse: Police Officer Juwann Jones stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
C.POM Christopher Layton	Abuse: Police Officer Christopher Layton stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
D.POM Christopher Layton	Discourtesy: Police Officer Christopher Layton spoke discourteously to § 87(2)(b)	
E.POM Christopher Layton	Force: Police Officer Christopher Layton used physical force against § 87(2)(b)	
F.POM Christopher Layton	Abuse: Police Officer Christopher Layton frisked § 87(2)(b)	
G.POM Christopher Layton	Abuse: Police Officer Christopher Layton searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
H.POM Juwann Jones	Abuse: Police Officer Juwann Jones failed to provide § 87(2)(b) with a business card.	
I.POM Juwann Jones	Abuse: Police Officer Juwann Jones failed to provide § 87(2)(b) with a business card.	
J.POM Christopher Layton	Abuse: Police Officer Christopher Layton failed to provide § 87(2)(b) with a business card.	
K.POM Christopher Layton	Abuse: Police Officer Christopher Layton failed to provide § 87(2)(b) with a business card.	
L.SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo failed to provide § 87(2)(b) with a business card.	
M.SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo failed to provide § 87(2)(b) with a business card.	

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On May 3, 2020, an unknown officer submitted this complaint with the CCRB via the DIRAD messaging system. On May 3, 2020, Sgt. § 87(2)(b) Chew of the 43rd Precinct received a walk-in complaint from § 87(2)(b) and forwarded it to the Internal Affairs Bureau (IAB). It was received at the CCRB on May 11, 2020, via Log #2020-11803.

On April 30, 2020, at approximately 7:00 p.m., Sgt. Robert Vassallo and Police Officers Juwann Jones and Christopher Layton of the 43rd Precinct pulled over § 87(2)(b) and § 87(2)(b) at the intersection of Randall Avenue and Zerega Avenue in the Bronx (**Allegations A, B, and C: Abuse of Authority:** § 87(2)(g) PO Layton told § 87(2)(b) to step out of the vehicle. When he did, PO Layton allegedly said, “Shut the fuck up” (**Allegation D: Discourtesy:** § 87(2)(g) PO Layton allegedly pushed § 87(2)(b) against the front of the vehicle, causing an indentation on his chest (**Allegation E: Force:** § 87(2)(g) and frisked him (**Allegation F: Abuse of Authority:** § 87(2)(g) PO Layton searched the interior of the vehicle and the trunk (**Allegation G: Abuse of Authority:** § 87(2)(g) None of the officers offered to provide Right to Know Act business cards to either § 87(2)(b) or § 87(2)(b) (**Allegations H, I, J, K, L, and M: Abuse of Authority:** § 87(2)(g) The officers left without issuing any summons or making any arrests. § 87(2)(g), § 87(4-b)

BWC footage was obtained from the NYPD Legal Bureau (BR 01-03). No surveillance footage was obtained by the investigation.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Juwann Jones stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: Sergeant Robert Vassallo stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegations C – Abuse of Authority: Police Officer Christopher Layton stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

PO Jones, PO Layton, and Sgt. Vassallo all had BWC footage (BR 01-03) that showed them pull over the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. PO Jones’ BWC (BR 03), beginning at 0:45, showed an air freshener suspended from the rear-view mirror of the vehicle.

§ 87(2)(b) testified that he was giving driving lessons to § 87(2)(b) his cousin, near the intersection of Randall Avenue and Zerega Avenue. § 87(2)(b) observed an unmarked police vehicle behind them with its lights activated. § 87(2)(b) pulled over immediately to the right. PO Jones told § 87(2)(b) that they pulled him over because he drove on the sidewalk. § 87(2)(b) did not observe § 87(2)(b) drive on the sidewalk.

§ 87(2)(b) declined to participate in this complaint.

PO Jones testified that he drove an unmarked vehicle with PO Layton in the front seat and Sgt. Vassallo in the back seat, in the vicinity of Randall Avenue and Zerega Avenue in the Bronx. PO Jones observed a vehicle with an obstructed view – air freshener hanging from his rearview mirror – and activated his lights to stop the vehicle. The hanging air freshener was a violation of VTL 375(30). The driver began to pull over immediately. In the process, they struck the curb and the front wheel well went onto the sidewalk.

PO Layton testified that he observed § 87(2)(b) drive onto the curb. Sgt. Vassallo did not recall

what infractions led to this vehicle stop.

It is unlawful for any person to operate a motor vehicle with any object placed or hung in the vehicle in such a manner as to obstruct with the view of the operator through the windshield. New York State Vehicle and Traffic Law §375 (30) (BR 04).

§ 87(2)(b), § 87(2)(g)

Allegation D – Discourtesy: Police Officer Christopher Layton spoke discourteously to § 87(2)(b)

PO Layton's BWC (BR 02), beginning at 6:20, showed him ask § 87(2)(b) to step out of the vehicle. The footage captured the entirety of their interactions, from the moment PO Layton approached the vehicle, until § 87(2)(b) reentered the vehicle. PO Layton did not tell § 87(2)(b) to "shut the fuck up" and did not use any profanity.

§ 87(2)(b) testified that PO Layton asked him to step out of the vehicle. § 87(2)(b) replied by stepping out and asking what the probable cause was. PO Layton replied, "Shut the fuck up."

PO Layton testified that he did not tell § 87(2)(b) to, "Shut the fuck up." PO Jones did not hear PO Layton say, "Shut the fuck up." Sgt. Vassallo denied that PO Layton said, "Shut the fuck up."

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Allegation E – Force: Police Officer Christopher Layton used physical force against § 87(2)(b)

PO Jones' BWC (BR 03), beginning at 7:00, showed PO Layton open § 87(2)(b)'s door. § 87(2)(b) exited the vehicle. PO Jones' BWC captured the entirety of PO Layton's interaction with § 87(2)(b) at the front of the vehicle. PO Layton did not push § 87(2)(b) against the frame of the vehicle. § 87(2)(b)'s chest never touched the frame of the vehicle.

§ 87(2)(b) testified that Police Officer Layton grabbed his arms and spun him around so that he faced the vehicle. PO Layton pushed § 87(2)(b)'s lower back with both hands, pushing him forward approximately one and a half feet against the frame of the vehicle. § 87(2)(b)'s chest struck the top of the vehicle while the car door was open, creating an indentation on his chest that he noticed that evening.

PO Layton denied pushing § 87(2)(b) against the frame of the vehicle or using any force to turn him around. PO Jones and Sgt. Vassallo denied that PO Layton pushed § 87(2)(b) against the frame of the vehicle.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation F: Abuse of Authority – Police Officer Christopher Layton frisked § 87(2)(b)

Allegation G: Abuse of Authority – Police Officer Christopher Layton searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

PO Layton's BWC (BR 02), beginning at 6:20, depicted PO Layton unzip § 87(2)(b)'s jacket and pat down § 87(2)(b)'s chest. PO Layton touched § 87(2)(b)'s jacket pockets. § 87(2)(b) turned around. PO Layton told § 87(2)(b) to spread his legs and patted down both of § 87(2)(b)'s legs. Sgt. Vassallo escorted § 87(2)(b) to the back of the vehicle, and PO Layton entered the front passenger seat of the vehicle with a flashlight. He entered each door of the vehicle, searching through compartments and several backpacks. PO Layton searched through the trunk, in the spare tire area, and in several bags.

PO Jones' BWC (BR 03), beginning at 9:40, depicted PO Jones speak with § 87(2)(b) at the back of the vehicle. PO Jones says that there is an odor of marijuana coming from inside the vehicle. He suggested that the smell had held in § 87(2)(b)'s clothes from smoking on another occasion. § 87(2)(b) said, "You talking about the stench? Okay. My fault." PO Jones suggested § 87(2)(b) wear cologne in the future.

§ 87(2)(b) testified that PO Layton patted down his legs and groin area, then searched throughout the vehicle, in the glove compartment, in the center console, and in the trunk. He denied that there was marijuana in the vehicle. Neither he nor § 87(2)(b) smoked beforehand, and there was no smell of marijuana coming from the vehicle. At some point, PO Jones told § 87(2)(b) that he did not smell marijuana.

PO Layton testified that he patted down the passenger of the vehicle because of the odor of marijuana. There was no other reason to pat this individual down. PO Layton patted his upper torso, pockets, and jeans. He did not remember if the passenger had a jacket, but if he did, PO Layton would have patted it down. PO Layton searched the vehicle because it smelled like marijuana and because of the driver's statements about smoking marijuana. PO Layton did not recover any contraband. Based on the driver's statements to PO Jones, PO Layton assumed that the source of the smell had been the driver's clothing.

PO Jones testified that upon approaching the vehicle, he immediately smelled the odor of marijuana emitting from the driver side window. The driver informed PO Jones that the passenger smoked marijuana either occasionally or socially. PO Jones believed that the smell of marijuana gave the officers probable cause to search the vehicle. He did not see if PO Layton frisked § 87(2)(b) but PO Layton did search the vehicle. PO Jones did not know where in the vehicle he searched.

Sgt. Vassallo testified that as he approached the vehicle, he smelled fresh marijuana. At some point, the vehicle operator stated that he had smoked marijuana earlier in the day. Sgt. Vassallo did not recall which officer frisked § 87(2)(b) or which officer searched the vehicle.

An officer may conduct a warrantless search of a vehicle and its occupants if that officer detects the odor of marijuana. People v. Chestnut, 43 A.D.2d 260 (1974) (BR 05).

Although § 87(2)(b) denied there being an odor of marijuana coming from the vehicle, PO Jones' BWC showed § 87(2)(b) saying "my bad" regarding what was in his words "the stench" of marijuana. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation H: Abuse of Authority – Police Officer Juwann Jones failed to provide § 87(2)(b) with a business card.

Allegation I: Abuse of Authority – Police Officer Juwann Jones failed to provide § 87(2)(b) with a business card.

Allegation J: Abuse of Authority – Police Officer Christopher Layton failed to provide § 87(2)(b) with a business card.

Allegation K: Abuse of Authority – Police Officer Christopher Layton failed to provide § 87(2)(b) with a business card.

Allegation L: Abuse of Authority – Sergeant Robert Vassallo failed to provide § 87(2)(b) with a business card.

Allegation M: Abuse of Authority – Sergeant Robert Vassallo failed to provide § 87(2)(b) with a business card.

BWC footage for PO Jones, PO Layton, and Sgt. Vassallo (BR 01-03), captured the entirety of this incident and did not depict them offering business cards to § 87(2)(b) or § 87(2)(b).

PO Jones testified that he generally carried business cards with him. He did not provide a business card during this incident. PO Jones' understanding was that he was to provide business cards upon request. PO Jones was not aware of any policy that would have required him to provide a business card during this incident.

Sgt. Vassallo did not recall if any officer provided a business card during this incident. Sgt. Vassallo was asked if this incident would have required him to provide a business card. He replied that he would need to re-read the procedure to correctly answer the question. None of the civilians asked for a business card.

PO Layton carried RTKA business cards. PO Layton did not provide any business cards because the officers used their discretion. It was PO Layton's understanding that this situation was not a situation in which he would be required to provide a business card. This was because it smelled like marijuana and the driver said he was smoking. It was PO Layton's understanding was that when a vehicle smelled like marijuana, officers were not required to provide business cards. PO Layton was trained that this was the policy when he first received his business cards. PO Layton did not remember when business card training happened.

The definition of a law enforcement activity includes frisking an individual and searching a vehicle. During a law enforcement activity, an officer shall offer a business card at the conclusion of such activity that does not result in an arrest or summons. New York Administrative Code Law 14-174 (b) (BR 06).

Sgt. Vassallo supervised as he, PO Jones, and PO Layton conducted a vehicle stop, and PO Layton frisked § 87(2)(b) and searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(b), § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 09).
- PO Jones has been a member-of-service for 3 years and this is the first CCRB complaint to which he has been a subject.
- PO Layton has been a member-of-service for 4 years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Vassallo has been a member-of-service for 8 years and has been a subject in 8 CCRB complaints and 29 allegations, none of which have been substantiated.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- As of March 26, 2021, the NYC Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (BR 10).
- § 87(2)(b)

Squad 6

Investigator: Mac Muir Supervising Investigator Muir 04/15/21
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña 4/16/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date